

HOUSE BILL 2362

By Hawk

AN ACT to amend Tennessee Code Annotated, Section 7-51-1008, relative to entertainment transportation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 7-51-1008, is amended by deleting the section and substituting:

(a) Notwithstanding this part to the contrary, a governmental entity that regulates entertainment transportation pursuant to this part shall not:

(1) Refuse to renew a permit to a business that provides entertainment transportation if the governmental entity issued the initial permit to a business to provide entertainment transportation;

(2) Revoke a permit issued to a business that provides entertainment transportation except for good cause shown in an administrative hearing;

(3) Deny the transfer of a permit or any other regulatory credentials issued by the governmental entity for purposes of operating an entertainment transportation vehicle from one business that provides entertainment transportation to another:

(A) If the business receiving the permit or regulatory credentials demonstrates the ability to operate an entertainment transportation vehicle that is qualified under state law or local ordinance, resolution, rule, or regulation to operate in the jurisdiction of the governmental entity for which it was issued; and

(B) If notice of the transfer is provided to the permitting authority designated by the governmental entity;

(4) Prohibit the holder of a permit or any other regulatory credentials issued by a governmental entity for the purposes of operating an entertainment transportation vehicle from entering into a partnership with another business:

(A) If all parties are otherwise qualified under state law or local ordinance, resolution, rule, or regulation to operate in the jurisdiction of the governmental entity for which it was issued; and

(B) If notice of the partnership is provided to the permitting authority designated by the governmental entity;

(5) Establish noise ordinances for entertainment transportation vehicles that create different maximum allowable decibel limits from other commercial property within a commercial zoning area designed for tourism activity;

(6) Require an applicant for permit or other regulatory credentials to submit a traffic study as a condition of approval; or

(7) Require entertainment transportation vehicles to be enclosed if all other safety requirements established by state law or local ordinance, resolution, rule, or regulation are met.

(b) As used in this section, "good cause":

(1) Means a repeated, material violation of a state law or a local ordinance, resolution, rule, or regulation governing the permit, which may be demonstrated by a knowing failure or refusal to comply with such law, ordinance, resolution, rule, or regulation; and

(2) Includes the disuse or dormancy of a permit for a period of six (6) months or longer prior to the governmental entity taking action to revoke the permit; provided, that the start date for calculating a six-month period of disuse or dormancy begins on or after May 1, 2024.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.